

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simone Cherry (T2)	Team: Team # 5	CCRB Case #: 200509893	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/18/2005 5:49 PM	Location of Incident: Intersection of Major Deegan Expressway and West Fordham Road		Precinct: 52	18 Mo. SOL 2/18/2007	EO SOL 2/18/2007
Date/Time CV Reported Thu, 08/25/2005 8:38 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/25/2005 8:38 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Filastin Abedrabbo	23392	933550	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Keith Gonzalez	05897	934946	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Filastin Abedrabbo	Discourtesy: POF Filastin Abedrabbo spoke obscenely and/or rudely to § 87(2)(b)	

Synopsis

On August 25, 2005, the complainant, § 87(2)(b) called his complaint into CCRB. According to § 87(2)(b) on August 18, 2005, at approximately 5:49 p.m. he was involved in a vehicle accident with another motorist at the intersection of the Major Deegan Expressway and Fordham Road in the Bronx and issued a summons for an expired registration. § 87(2)(b) identified the subject officer as a female, named POF Abedrabbo with shield number 23392, assigned to the 52nd Precinct. § 87(2)(b) said he obtained this officer's name from her badge and accident report. § 87(2)(b) said that POF Abedrabbo told him, "Move the fucking car." § 87(2)(b) also added that the subject officer prepared a vehicle accident report but left out pertinent information about the accident.

An Officer Identification database check was done by the undersigned investigator and confirmed that POF Filastin Abedrabbo is assigned at the 52nd Precinct with shield number 23392 and tax number 933550.

On September 12, 2005, the investigator called § 87(2)(b). He was offered mediation over the telephone and accepted. This case was then referred to the Alternative Dispute Resolution (ADR) Unit. On October 11, 2005, the ADR Unit returned the case for an investigation to the undersigned investigator because the Department of Advocate Office (DAO) had rejected the case for mediation.

Eventually, on October 25, 2005, § 87(2)(b) was re-contacted at his cellular phone § 87(2)(b) and was uncooperative with scheduling an appointment. § 87(2)(b) stated that he first wanted to check his calendar before scheduling an appointment.

Then on October 31, 2005, the investigator made an additional call to § 87(2)(b) in an attempt to schedule an interview appointment, but to no avail. § 87(2)(b) told the investigator that he was in class and could not talk at the time. Also on November 9, 2005 and November 10, 2005, additional calls were made to § 87(2)(b)'s cellular answering service and the investigator left detail messages apprising him that this case cannot remain open indefinitely without obtaining a sworn statement from him. On November 10, 2005, a contact letter was also sent to § 87(2)(b) and was not returned or responded to.

Finally, on November 21, 2005, § 87(2)(b) called the investigator and scheduled an interview appointment to appear at CCRB on November 28, 2005. However, § 87(2)(b) failed to show for this appointment. On December 5, 2005, a missed appointment letter was sent to § 87(2)(b). It has not been returned or responded to.

Also on January 4, 2006, an additional call was made to § 87(2)(b) but to no avail. Again, a message was left on his answering service in an attempt to schedule a second appointment with him, but again he failed to respond.

As of January 17, 2006, § 87(2)(b) still has not responded to the investigator's attempts to arrange a second interview. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: